

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Motion to Expedite and Request Submission

Filed May 14, 2026

The City of Norvale moves under Federal Rules of Appellate Procedure 2 and 27 and Local Rule 12(c) for expedited consideration of this interlocutory appeal. Principal briefing is complete: the City filed its opening brief on March 23, the Piedmont Booksellers Guild responded on April 22, and the City filed its reply on May 13. The certified record and joint appendix are available. No additional transcript or evidentiary submission is needed to decide the questions presented.

The City also requests review for submission without oral argument under Rule 34(a)(2). That determination belongs to a three-judge panel after examination of the briefs and record and must be unanimous. The City does not ask the clerk to decide the merits or to dispense with argument administratively. It asks that the completed appeal be delivered promptly for panel screening and, if the rule's standard is met, submitted on the written presentations.

Expedition is warranted because the appealed injunction governs a fixed series of 2026 events. Two dates have passed, four remain, and the parties continue to coordinate under a disputed division between speaker-specific requirements and general operational authority. A prompt decision will clarify interim administration without enlarging the interlocutory scope of review.

Recurring Events Create a Concrete Need for Expedition

The Guild announced fairs at Cedar Commons for February 14, April 11, June 13, August 8, October 10, and December 12. The January 23 preliminary injunction applies to that full series. Although the February and April dates have concluded, the same ordinance, organizer, park, and operative order govern four future events. The next fair is thirty days away.

Each remaining date requires decisions before the Saturday itself. The Guild selects authors, promises modest honoraria, advertises a schedule, and arranges seller participation. The City evaluates expected attendance, loading, traffic, emergency access, equipment, layout, sanitation, and overlapping reservations. Both parties benefit from knowing whether the district court used the correct tailoring standard and whether its operative command satisfies the specificity and security requirements governing preliminary injunctions.

The City does not claim that the passage of one fair automatically ends the controversy. Nor does it request summary reversal on the motion papers. The requested acceleration would place the already briefed merits before the assigned panel while multiple dates remain. It would not shorten a response period that has already closed, require a new appendix, or prevent the Court from requesting supplemental briefing if a genuinely unresolved question emerges. The practical calendar therefore supports prompt screening without sacrificing adversarial presentation.

The Appeal Is Ready for Rule 34 Review

The briefs address jurisdiction under 28 U.S.C. § 1292(a)(1), the recurring nature of the dispute, the preliminary-injunction factors, the fit between paid-speaker status and municipal interests, less burdensome coordination measures, and Federal Rule of Civil Procedure 65(c) and (d). The record contains the ordinance, legislative materials, pilot history, declarations, site information, stipulated alternatives, hearing transcript, district opinion, injunction, and complete stay sequence. The legal and factual positions have been presented from both sides.

Rule 34(a)(2) permits decision without oral argument only if all three panel members, after review, agree that one of the stated grounds exists. The City relies on the ground that the facts and legal arguments are adequately presented and that argument would not significantly aid the decisional process. It does not characterize the appeal as frivolous or claim that every issue has already been authoritatively resolved.

The Guild prefers oral argument and believes questions about recurring expressive planning would benefit from counsel's answers. The City respects that position. Its request is that the Court make the Rule 34 assessment now, not that the Guild's preference be disregarded by default. If any panel member concludes argument would help, the City asks for the earliest practical setting and an expedited decision afterward. This alternative preserves the rule's protection while recognizing the event calendar.

Scope of Requested Relief

The Court may expedite a particular appeal for good cause and direct proceedings suited to a completed record. The City asks for an order granting expedited treatment, referring the case immediately to a three-judge panel, and authorizing prompt Rule 34 screening. If the panel unanimously concludes that oral argument would not materially assist, the City asks that the appeal be submitted on the briefs. If it does not, the City requests the earliest feasible argument date.

This motion does not seek a stay, dissolution of the injunction, a ruling on mootness, or advance approval of the City's merits position. The January 23 order remains in effect unless changed through a separate lawful disposition. The motion also does not ask the Court to predict whether any remaining fair will produce a permit disagreement. It relies on the undisputed need for advance coordination and the completed appellate presentation.

Counsel informed the Guild before filing. The Guild consents to expedited panel review but opposes submission without oral argument. No separate factual declaration accompanies the motion because the relevant dates and filings appear on the docket and in the record. Municipal Appellate Counsel certifies electronic filing and service on May 14, 2026. The City respectfully requests the limited procedural relief stated above.